IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

Case No. CA 633/2000(F)
D. C. Kuliyapitiya Case No. 8168/P

SA H. M. A. Padma Dissanayake
Dematawa, Moragane.
7A Hitihamie Mudiyanselage Jayantha Kumara
Wijayaratne
Hiththarapola, Magulagama.

SA & 7A Defendants-Appellants
Vs.

Jayasinghe Mudiyanselage Pinhami
Ehala Dematawa,
Moragane.
Substituted-Plaintiff-Respondent

1. Jayasinghe Mudiyanselage Sundara Bandara
Maya Kadawara, Magulagama.
2. Jayasinghe Mudiyanselage Guna Banda
No. 116, Mahawaskaduwa,
Waskaduwa.
3. Jayasinghe Mudiyanselage Lilawathi
4. Jayasinghe Mudiyanselage Jayasena
Both of Ihala Dematawa,
Moragane.
6A. Nawarathne Mudiyanselage Ukku Banda Dematawa, Moragane.
8A. H. M. Podiratne
No. 71, Subharathie Mawatha, Kuliyapitiya.
9. Jayasinghe Mudiyanselage Dharmasena
10. Jayasinghe Mudiyanselage Karunawathie 11A. J. M. Pemawathie
All of Dematawa, Moragane.
12. Jayasinghe Mudiyanselage Seelawathie Yayagedara, Bandarakoswatte.
13. Jayasinghe Mudiyanselage Weerathilake Angamuwa, Moragane.

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14. Jayasinghe Mudiyanselage Sirisena Mullegama, Nawattegama, Anamaduwa.
15. Jayasinghe Mudiyanselage Wijeratne Weeragoda, Moragane.
16. Jayasinghe Mudiyanselage Leelawathie Kandaboda, Magulagama.
17. Jayasinghe Mudiyanselage Gnanawathie
18. Jayasinghe Mudiyanselage Kusumawathie Both of Elathalawa, Deegalla.
19. Jayasinghe Mudiyanselage Nandawathie Nelibewa, Moragane.
20. Jayasinghe Mudiyanselage Wimalaweera
21. Jayasinghe Mudiyanselage Sarath Kumara Both of Ihala Dematawa, Moragane.
22. W. H. M. Ariyaratne
Thalakolawewa, Anamaduwa.
23. W. H. M. Nandawathie
Muriyakulama, Kottukachchiya.
24. B. M. Kumari Wijayawatne
In front of the Police, Anamaduwa.
25. Mathanganie Wijayaratne
C/O Thilak Jayasinghe,
'Jayasinghe Niwasa', Yatagama,
Walgama, Rambukkana.
26. Ranjanie Wijayaratne
'Jayantha Motors', Puttalam Road, Anamaduwa.
27. B. M. Seetha Wijayaratne
28. Indrani Wijayaratne
29. B. M. Shiwanthi Wijayaratne
30. B. M. Shantha Wijayaratne
All of in front of the Police, Anamaduwa.
31. J. H. Piyasena
Kamburapola, Moonamaldeniya.
32. J. M. Punchimenika
Dematawa, Moragane.
33. J. M. Anagihamy
Nelibewa, Moragane.

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34. J. M. Jayasena
Dematawa, Moragane.
35. J. M. Ranmenika
Gomugomuwa.
36. Nirosha Jayasinghe
C/O R. B. Ranbanda Basnayake,
Kadawalagedara, Moonamaldeniya.
37. L. Indika Bandula Jayasinghe
C/O Lindamulage,
Kadawalagedara, Moonamaldeniya.
38. P.Dingiriamma
C/O H. M. Dhanapala,
Pahala Kadigamuwa, Ihala Kadigamuwa.
39. P. Seelawathie
40. P. Karunaratne
41. P. Dayaratne
42. P. Thilakaratne
43. P. Nandawathie
All of C/O J. M. Kirimenika, Mahadanwila, Boraluwewa.
44. J. M. Dingiriamma
45. J. M. Jayasinghe
46. J. M. Somathilake
47. J. M. Gnanawathie
48. J. M. Chadralatha
All of Yayagedara, Bandarakoswatte.
49. A. M. Podimenika
Ihala Dematawa, Moragane.
50. A. M. Wijesena
Dematawa, Moragane.
51. A. M. Ukkumenika
Mandapola, Hettipola.
52. A. M. Bandaramenika
Dandagamuwa, Kuliyapitiya.
53. A. M. Dayananda
Angamuwa, Moragane.
54. A. M. Kiribanda
Medirigiriya, Medirigiriya.

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Before: Janak De Silva J.

Counsel:

55. A. M. Dingirimenika
Dematawa, Moragane.
1_4th, GA, 8A, 9, 10, llA,12 _55th Defendant-Respondents

5A and 7A Defendants-Appellants absent and unrepresented

M.e. Jayaratne with M.D.J. Bandara for Substituted-Plaintiff-Respondent

Written Submissions tendered on:

Substituted-Plaintiff-Respondent on 26.10.2018

Argued on: 18.02.2019

Decided on: 31.05.2019

Janak De Silva J.

This is an appeal against the judgment of the learned District judge of Kuliyapitiya dated 19.09.2000.

The Plaintiff instituted the above styled action to partition the land morefuliy described in the

schedule to the plaint One Acre extent. The 5th and 7th Defendants sought a dismissal of the action or in the alternative to partition only Lots 2 and 3 morefully described in the preliminary plan no. 113/kuli/87 [Appeal Brief page 268] and Lot 1 therein to be excluded. The other parties did not dispute either the pedigree pleaded by the Plaintiff or the identity of the corpus.

It is trite law in partition actions that the trial judge is under a "supervening duty to satisfy itself as to the identity of the corpus" [Wickremaratne v. A/penis Perera [1986] 1 Sri. L.R. 190 at 199] as "clarity in regard to the identity of the corpus is fundamental to the investigation of title in a partition case." [Sopinona v. Pitipanaarachchi and two others (2010) 1 Sri.L.R. 87 at 106]

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Since the Plaintiff and the 5th and 7th Defendants were disputing the identity of the corpus it was incumbent on the learned Judge to clearly identify the corpus sought to be partitioned. The identity of the corpus assumes greater importance on the facts as the preliminary survey report of the surveyor indicates that he was not in a position to state clearly to court whether the land surveyed is the land sought to be partitioned [Appeal Brief page 270]

However, this is a result of two divergent positions taken by the Plaintiff and the 5th and 7th Defendants during the preliminary survey where the Plaintiff pointed out Lots 1 and 2 of preliminary plan no. 113/kuli/87 [Appeal Brief page 268] as the corpus in the partition action

whereas the 5th and 7th Defendants pointed out Lots 2 and 3 therein as the corpus in the partition

action.
However, during the trial, the SA and 7A Defendants agreed to exclude Lot 3 of preliminary plan no. 113/kuli/87 [Appeal Brief page 268] from the corpus sought to be partitioned [Appeal brief page 177]. Hence the remaining issue was whether Lot 1 of preliminary plan no. 113/kuli/87 [Appeal Brief page 268] should be partitioned along with Lot 2 therein.
The preliminary plan no. 113/kuli/87 [Appeal Brief page 268] identifies the corpus as

Paranawatta. The position taken up in the statement of claim by the 5th and 7th Defendants is that Lot 1 of preliminary plan no. 113/kuli/87 [Appeal Brief page 268] is called Ambagahamulawatta and is not part of Paranawatta.
The SA and 7A Defendants rely on deeds no. 3494 (S€l l) and 43905 (S€l2) [Appeal Brief pages 258-263] to prove their title. However, the lands referred to therein are Ambagahamulawatta and Halambagahakumbura and they have failed to take out a commission to prove that these two lands are part of the corpus in the partition action.
The learned District Judge has carefully considered the evidence led and correctly concluded that Lot 1 of preliminary plan no. 113/kuli/87 [Appeal Brief page 268] is part of Paranawatta. In particular the learned Judge has accepted the evidence of the p t Defendant that although there were three lines of barbed wire on the western boundary of Lot 1 of preliminary plan No. 113/kuli/87 [Appeal Brief page 268] previously they were not there when the preliminary survey was done. The learned judge has concluded that Lot 1 of the preliminary plan no. 113/kuli/87 [Appeal Brief page 268] is part of Paranawatta.

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I have given careful consideration to the evidence led in this matter and the conclusions thereon of the learned District Judge. I see no reason to interfere with the judgment of the learned District judge of Kuliyapitiya dated 19.09.2000.
Appeal is dismissed with costs.

Judge of the Court of Appeal

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